

SMITH v. CARTWRIGHT

21CV45132

PLAINTIFF'S MOTION FOR RECONSIDERATION

Defendant is the record owner of 5348 Messing Road in Valley Springs, and leased the property to plaintiff with an option to purchase at a fixed sum within two years. According to plaintiff, defendant reneged on the agreement, and secretly recouped rent from tenants in the “front” house on the property despite plaintiff’s rental agreement purportedly covering both residences. The history between the parties is complex, as reflected in the various legal proceedings between them. (See 20CH45068, 21UD13373, 21UD13416, and 21CH45278.) In this seemingly straightforward civil action, plaintiff alleges thirteen (13) causes of action, ranging from breach of contract to invasion of privacy and assault.

Before the Court is plaintiff’s motion for reconsideration of this Court’s ruling denying plaintiff’s motion for judgment on defendant’s unverified answer, pursuant to CCP §438(c)(1)(A). As set forth in the Minute Order, the Clerk’s Notice of Ruling, and the formal Written Order, plaintiff’s motion was denied not because plaintiff’s counsel forgot to request argument pursuant to Local Rule 3.3.7 but, rather, because the absence of a verification is an issue which must be addressed via a motion to strike (CCP §436(b)), and not a Motion for Judgment on the Pleadings. Furthermore, this Court found that plaintiff sat far too long on his rights to complain almost a year later about a missing verification, i.e. laches which blocks a request for equitable relief. In keeping with the overarching axiom that legal disputes are to be decided on the merits whenever possible, and the fact that the defect here was entirely (and easily) curable, this Court denied the MJOP and gave defendant leave to file a *verified* First Amended Answer – which he has since done.

Plaintiff’s MJOP – which was directed to the original answer – is now moot as that pleading – whether defective or not – has been superseded and is no longer of any import. (See *State Comp. Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1130-1131.) Even if this Court were to reconsider the MJOP, given that the defect in the answer was entirely curable, plaintiff’s best day would be “grant with leave to amend” and that has already occurred, and the alleged defect has been cured. (See, e.g., *Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 360; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768-769; *Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.) There is absolutely nothing substantive to be gained from this motion for reconsideration, and yet plaintiff zealously pushes forward.

[Before explaining why plaintiff’s motion for reconsideration is utterly without merit, and arguably sanctionable (*infra*), this Court would like to remind Attorney Loving of his

professional obligations set forth at CRPC Rule 3.1(a), 3.3(a), 4.1, and 8.2(a). The motion for reconsideration takes what this Court considers to be remarkable liberties with truth, integrity, and respect for the Court. (See, e.g., 2:12-17; 4:13-23; 5:13-19; 6:11-16; 7:6-8; 9:16-20; 10:1-9; 12:10-21.)]

As to the merits of the motion for reconsideration...

First, in this County, oral argument must be affirmatively requested for any law and motion matter. The local rule is rather explicit: “the tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear.” (Calaveras County Superior Court Local Rule 3.3.7.) This rule tracks, and is authorized by, CRC 3.1308(1). Plaintiff’s counsel included this very warning in the Notice accompanying his own MJOP, and the same warning appears on this Court’s website where tentative rulings are posted. Although plaintiff’s counsel is correct that the courtesy notice served by the Court on 07/22/22 did state that the parties were “directed to appear” on a different day for the motion, pursuant to plaintiff’s Notice, this Court’s website, CRC 3.1308(a)(1), and CCSC Local Rule 3.3.7, everyone understood that no hearing would occur absent a request for oral argument. (See also *Tellez v. Rich Voss Trucking, Inc.* (2015) 240 Cal.App.4th 1052, 1060.) Counsel’s impression that a hearing would occur either way, based solely on the language of that courtesy notice, reflects a mistake of law, and legal errors are not curable on a motion for reconsideration.

Second, in this County, oral argument – when permitted – may not exceed ten (10) minutes and cannot go beyond the written papers already on file. (Calaveras County Superior Court Local Rule 3.3.) Despite counsel’s protestations, there is no “constitutional right” to oral argument in civil litigation. (See *Lewis v. Superior Court* (1999) 19 Cal.4th 1232, 1247; *Titmas v. Superior Court* (2001) 87 Cal.App.4th 738, 742.) Given this, and the inherent limits with oral argument, many appellate courts have concluded that oral argument is fundamentally “collateral” to the substantive issues of the motion, and does not constitute “a new circumstance” warranting reconsideration. (See, e.g., *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690-691; *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500; in accord, *Pazderka v. Caballeros Dimas Alang, Inc.* (1998) 62 Cal.App.4th 658, 670.)

Third, plaintiff tacitly approved the ruling submitted by defendant and entered by this Court on 08/18/22. Pursuant to CRC 3.1312(a), plaintiff had five days to either approve the proposed ruling or “state any reasons for disapproval.” Failing to set forth those reasons, plaintiff would be automatically deemed to have “approved” the proposed ruling. Here, Attorney Loving advised defense counsel via email on 08/06/22 that his client was considering options to challenge the substance of the ruling, but never once articulated any issue (procedural or substantive) with the proposed ruling itself. Attorney Loving simply stated that, because he disagreed with this Court’s order, “hell

will freeze over before the (sic) I sign it.” This is a tacit admission that the proposed ruling was correct, to wit: “neither party requested oral argument.”

Fourth, plaintiff’s motion for reconsideration was technically late. A motion for reconsideration must be made “within 10 days after service upon the party of written notice of entry of the order” subject to reconsideration. (CCP §1008(a); see *Novak v. Fray* (2015) 236 Cal.App.4th 329, 335; *Wilson v. Science Applications Internat. Corp.* (1997) 52 Cal.App.4th 1025, 1032.) Pursuant to CRC 3.1308(a)(1), the tentative ruling became “the ruling of the court” at 4:01pm on 08/04/22. (See *M&R Properties v. Thomson* (1992) 11 Cal.App.4th 899, 901.) Both sides were notified by the court clerk on 08/05/22 that the Court’s tentative ruling had become the order of the Court. This notice informed the parties that the Minute Order and Ruling had been entered into the Register of Action. (See *Phipps v. Copeland Corporation LLC* (2021) 64 Cal.App.5th 319, 339; *Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1192.) Based on the 08/05/22 trigger, plaintiff had until 08/22/22 to file his motion for reconsideration. He was two days late. Although defendant looks to the 08/18/22 “formal” 3.1312 order as the 10-day trigger, this Court did not order service “by the party” (see CCP §1019.5(a)), and instead ordered service by the clerk. This was accomplished on 08/05/22. Plaintiff is taking issue with the 08/05/22 Minute Order and Ruling, not the subsequent 3.1312 order mirroring the Minute Order and Ruling.

For each, and all, of the above reasons, the motion for reconsideration was meritless *ab initio*. There was no bona fide basis for making, let alone maintaining, the motion. Pursuant to CCP §1008(d), “a violation of this section may be punished as a contempt and with sanctions as allowed by Section 128.7.” Pursuant thereto, every attorney who signs a filing certifies to the Court (and all opposing parties) that the filing has merit and is not being presented for an improper purpose. (*Musaelian v. Adams* (2009) 45 Cal.4th 512, 516.) The filing party has an affirmative duty to conduct a reasonable investigation regarding the facts, circumstances and legal support for the papers filed, a duty which continues even after the papers have been filed. If the filing – viewed objectively – fails to meet any of the three requirements (proper purpose, legal merit and evidentiary support), sanctions may be imposed. (*Bockrath v. Aldrich Chem. Co. Inc.* (1999) 21 Cal.4th 71, 82; *Stop Youth Addiction, Inc. v. Lucky Stores, Inc.* (1998) 17 Cal.4th 553, 575.) Frivolity is measured objectively; purpose is measured subjectively but can be inferred from the presence or absence of arguable merit. In the end, filing frivolous motions “is an abuse of the legal system that is not fair to the opposing litigant who is victimized by such tactics. Furthermore, whether the abuse involves the trial courts or the courts of appeal, other litigants are prejudiced by the useless diversion of the courts’ attention. And the judicial system and the taxpayers are damaged by what amounts to a waste of the court’s time and resources.” (*In re Marriage of Falcone* (2008) 164 Cal.App.4th 814, 830.)

This Court finds with little difficulty that the motion for reconsideration was presented primarily for an improper purpose (needlessly increasing litigation costs), and that the contentions made lacked legal or evidentiary support – both in terms of reconsideration

and as to the MJOP merits itself. Plaintiff worked with the unverified answer for almost a year, then claimed that leave to amend to include a verification would be an abuse of discretion because plaintiff “relied” on the unverified answer for a year (meaning plaintiff purposefully sat on his rights). No reasonable attorney would think this circular reasoning had merit. The absence of a verification was always curable, and since it was actually cured the same day the motion for reconsideration was filed, Attorney Loving clearly failed in his duty to reevaluate the propriety of the motion for reconsideration after it was filed. Defense Counsel has requested a very reasonable sanction of \$1,530, representing 5.1 hours at \$300/hr. Defense counsel has exercised due diligence in trying to get cooperation, to no avail, and is entitled to be reimbursed this amount. (CCP §128.7(d).) The Motion for Reconsideration is DENIED and Attorney Loving is personally assessed and ordered to pay \$1,530 to defense counsel within 5 calendar days.

The Clerk shall provide notice of this Ruling to the parties forthwith. No CCP §1019.5 or CRC 3.1312 order shall be required.

WILLIAMS v. MININ

21CV45674

PLAINTIFF'S APPLICATION FOR PRELIMINARY INJUNCTION

This is a neighbor dispute over ingress and egress via a dirt road cutting through many private parcels, which plaintiff describes as an easement. Surveying is no easy task when the parties are relying on unnatural monuments like iron pipes and wagon wheels. Nevertheless, defendant secured a survey and decided it was time to formalize those boundaries with wiring, fencing, "no trespassing" signs and a myriad of other barriers. The stated goal was to keep plaintiff and her guests/workers off defendant's property. Boundary line disputes are all-too-common in Calaveras County, often dating back to the railroads' abandonment of rights-of-way, outdated mining claims, and even Spanish land grants. Before the Court is plaintiff's application for a preliminary injunction barring defendant from – among other things – interfering with her historical use of defendant's property via a purported easement, and harassing her invitees.

Background Facts

On or about 01/10/14, defendant Andrew Minin acquired APN 014-013-070, which is more commonly referred to as 1263 Rayjen Lane, Rail Road Flat, CA 95248. His property consists of a 1,680 sq ft residence and 14.5 acres of wooded terrain. His grant deed includes:

- (1) a 50-foot easement running parallel to the western edge of the parcel "to a point on the county road leading from Mokelumne Hill to Railroad Flat (est. 11/27/43)," which seemingly traverses APN 014-013-027 and APN 014-013-069;
and
- (2) a non-exclusive easement for road and utility purposes "the same as" the easement described in Chester Raymond's deed. Chester's deed (APN 014-013-063) reflects an easement cutting across the northwest corner of the parcel, and which is made expressly "appurtenant to and for the benefit of" a parcel to the west, which appears to now be two parcels: APN 014-013-070 *and* 014-013-069.

On or about 10/31/14, plaintiff Margaret Williams acquired APN 014-012-034, which is more commonly referred to as 1330 Rayjen Lane, Rail Road Flat, CA 95248. Her property consists of a 2,644 sq ft residence and 16 acres of wooded terrain. Her grant deed includes:

- (1) a 60-foot easement running straight north along the eastern edge of the parcel up to Ridge Road, which apparently dissects APN 014-012-033, APN 014-012-041, and APN 014-012-042;